

CONSULTING SERVICES AGREEMENT №20260312-01

THIS CONSULTING SERVICES AGREEMENT (this “**Agreement**”) is entered into as of the date indicated on the signature page hereof (the “**Effective Date**”) is by and between SameThinkers Inc. (DBA Setronica), a Texas corporation (the “**Company**”) and the individual or entity indicated on the signature page as ‘Consultant’ (“**Consultant**” and, together with the Company, the “**Parties**” and each individually, a “**Party**”).

i). **WHEREAS**, the Company is engaged, *inter alia*, in the development, license, sale, and distribution of certain software products and services and is willing to enter into this Agreement with the Consultant on the terms and conditions set forth herein;

WHEREAS, the Consultant will provide certain Services pursuant to one or more statements of work (“**SOW**”), substantially in the form attached hereto as Exhibit A;

NOW, THEREFORE, in consideration of the mutual agreements hereinafter contained, and other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending legally to be bound hereby, agree as follows:

1. Services.

1.1. Engagement. The Company hereby retains the Consultant to perform the services as set forth in the applicable SOW or as further described in Section 2.1 hereof, and agreed to by the Parties (collectively, the “**Services**”).

1.2. Standard of Service. All Services to be provided by the Consultant shall be performed in a workmanlike manner, and at a level of proficiency to be expected of such a Consultant with the background and experience that the Consultant has represented he/she/it has.

1.3. Non-Exclusive Service. Company understands and agrees that this Agreement does not create an exclusive relationship between the Parties. Consultant shall not be exclusively devoted to providing Services for the Company and Consultant may have duties and responsibilities to other companies provided that any such duties and responsibilities to the Company shall be subject to the confidentiality obligations of Consultant pursuant to Section 6 hereof.

1.4. Representations, Warranties, and Covenants of the Consultant. The Consultant hereby represents, warrants, and covenants, as to himself/herself/itself, that:

(a). he/she/it has no obligations, legal or otherwise, inconsistent with the terms of this Agreement or with his/her/its undertaking a relationship with the Company;

(b). the performance of all of the terms of this Agreement does not and will not breach any agreement or obligation of any kind made prior to entering into this Agreement, including agreements or obligations he/she/it may have with entities for which he/she/it has provided services;

(c). the performance of his/her/its obligations called for by this Agreement do not and will not violate any applicable law, rule, or regulation, including but not limited to, any relevant secrecy law, privacy rights, anti-spam regulations, embargo and export law, or any proprietary or other right of any third party;

(d). he/she/it will assure, in connection with performance of his/her/its obligations pursuant to this Agreement or arising or relating therefrom, no product, documentation, Confidential Information or any portion thereof, and any information relating thereto or to this Agreement, is exported, transshipped or re-exported, directly or indirectly, in violation of any applicable law, and ensure that neither the products nor the documentation, underlying information or technology may be downloaded or otherwise exported or re-exported in violation of applicable embargo or export/import law, regulation or treaty;

(e). he/she/it shall not make, with respect to the matters provided for in this Agreement or any transaction related hereto, any offer, payment, promise to pay, or authorization of the payment of any money, or any offer, gift, promise to give or authorization of the giving of anything of value, directly or indirectly, to or for the use or benefit of any official or advisor of any governmental authority or to or for the use or benefit of any political party, official, or candidate unless such offer, payment, gift, promise, or authorization is authorized by applicable law;

(f). he/she/it shall not make any such offer, payment, gift, promise or authorization to or for the use or benefit of any other person being aware that, or in the knowledge or firm belief that, there is a high probability that the other person would use such offer, payment, gift, promise, or authorization for any of the purposes described in Section 1.4(e) above;

(g). he/she/it shall ensure that in the performance of his/her/its obligations hereunder neither he/she/it nor any person acting on his/her/its behalf in furtherance of this Agreement violate any laws and that neither he/she/it nor any consultant, employee or agent of the Consultant, shall give to any government employee or a client that is a government entity any gift, entertainment or other favor of any value on behalf of or appearing to be on behalf of the Company or any employee or agent of the Company or the Consultant. Neither the Consultant, nor any consultant, employee or agent of the Consultant, have made or offered (and shall not do so) bribes, kickbacks, or payments of money or anything of value to anyone, including officials, employees, or representatives of any government or public or international organization, or to any other third party for the purpose of furthering any interests of the Company in performing any of the obligations hereunder; and

(h). he/she/it has not entered into or will not enter into any agreement (whether oral or written) in conflict with this Agreement (e.g., exclusive services agreements or other agreements prohibiting the Consultant from performing his/her/its obligations hereunder).

1.5. OFAC Restrictions. Consultant and Consultant's representatives are not nor will be at any time in the future during the Term: (i) located in a country embargoed by the United States, (ii) the target of any sanctions program that is established by Executive Order of the President or published by the Office of Foreign Assets Control, U.S. Department of the Treasury ("**OFAC**"); (iii) designated by the President or OFAC pursuant to the Trading with the Enemy Act, 50 U.S.C. App. § 5, the International Emergency Economic Powers Act, 50 U.S.C. §§ 1701-06, the Patriot Act, Public Law 107-56 or any Executive Order of the President issued pursuant to such statutes; (iv) the target of Executive Orders 13660, 13661, 13662, 13686 and

associated laws and regulations pertaining to Ukraine; (v) named on the following list that is published by OFAC: “List of Specially Designated Nationals and Blocked Persons”; (vi) named on the U.S. Treasury Department’s list of Specially Designated Nationals; or (vii) listed or designated on the United States Commerce Department’s Table of Deny Orders. Consultant, if and when travels to or deals with any Restricted Territories and Persons, shall notify the Company of such travel plans and potential activities. Consultant shall not communicate, transfer, or convey any information, documentation, technology, and/or funds while in any territories subject to the restrictions above. Under no circumstances shall Consultant cause the Company to be deemed in violation of OFAC restrictions set forth above or to be deemed operating in and/or with Restricted Territories and Persons subject to the restrictions.

2. Contract Administration.

2.1. Issuance of SOW. The initial SOW agreed to by the Parties is set forth in Exhibit A hereto and any additional SOW(s), if any, regardless of whether they relate to the same subject matter as the initial SOW, shall become effective upon execution by authorized representatives of Company and Consultant, *provided, however*, that if the Company uses project management tools (i.e. Slack, Asana, Jira, etc.) (“**Project Tool**”) and has provided proper access to the Project Tool to the Consultant, any and all assignments and tasks entered into the Project Tool or communicated via any other written form, shall be deemed incorporated into and become a part of the applicable SOW, unless the Consultant objects in writing within twenty four (24) hours. For purposes of this Agreement, the term “*written*” shall include electronic communications from a Party, such as email and facsimile

2.2. Changes. Subject to Section 1.2, any changes in Services or related obligations shall become effective only when a written change request is executed by one Party hereto and accepted by the other Party at his/her/its sole discretion.

2.3. Notice of Delay. Each Party agrees to notify the other Party promptly of any factor, occurrence, or event coming to its attention that may affect the Consultant’s ability to meet the requirements under this Agreement.

3. Term and Termination.

3.1. Term. This Agreement is effective as of the Effective Date and will remain in full force and effect until one (1) year from the Effective Date (“**Original Term**”) *provided that*, unless this Agreement is earlier terminated as provided herein, the Agreement shall automatically extend for an unlimited number of one (1) year periods upon the expiration of the Original Term and the applicable extension periods (as so extended, the “**Term**”), unless either Party submits written notification to the other Party of its intent not to extend the Agreement at least ten (10) days prior to expiration of the Original Term or the applicable extension period. The date of expiration or the termination of this Agreement pursuant to any of the provisions of Section 3 shall be referred to as the “**Termination Date.**”

3.2. Termination. The Parties may terminate this Agreement as provided below:

(a). the Parties may terminate this Agreement by mutual written consent at any time;

(b). the Company may terminate this Agreement upon a two (2) weeks written notice for any reason or for no reason;

(c). the Consultant may terminate this Agreement upon a two (2) weeks written notice for any reason or for no reason, *provided, however*, that the Consultant shall complete any outstanding tasks under the then current SOW prior to such termination; and

(d). each Party may terminate this Agreement (i) if the other Party declares insolvency or bankruptcy, (ii) if a petition is filed in any court and not dismissed in ninety (90) days to declare the other Party bankrupt or for such other Party's reorganization under bankruptcy, insolvency, reorganization, moratorium, or other laws relating to or affecting the rights of creditors; or (iii) if the other Party consents to the appointment of a trustee in bankruptcy or a receiver or similar entity.

3.3. Effect of Termination. Upon the effective date of any termination of this Agreement, all legal obligations, rights, and duties arising out of this Agreement shall terminate except that: (i) the confidentiality restrictions, ownership of proprietary rights provisions, and independent contractor provisions of this Agreement shall continue to apply and shall survive the termination of this Agreement as ongoing covenants between the Parties; and (ii) the Consultant shall have the continuing obligation to return to the Company all tangible and intangible property of the Company and all Deliverables, as such term is defined in the applicable SOW(s).

4. Compensation.

4.1. Compensation. In consideration for the Consultant's performance of his/her/its obligations pursuant hereto, and subject to the terms and conditions of this Agreement and applicable SOW, the Company agrees to pay Consultant a fee as set forth in the applicable SOW.

4.2. Monitoring. In the event that Company requires remote monitoring as set out in Section 8 below, Consultant shall only be compensated for work that was properly logged and recorded by the monitoring system. Company shall not be responsible for errors with the monitoring software used or Consultant's failure to implement or enable the remote monitoring software.

4.3. Total Value of the Agreement. Unless otherwise agreed by the Parties, the total value of the Services provided pursuant to this Agreement shall be as set forth in Section 4.1.

4.4. Taxes and Other Payments. Each Party is responsible for complying with the collection, payment, and reporting of all taxes imposed by any governmental authority applicable to its activities in connection with this Agreement. None of the Parties is responsible for taxes that may be imposed on the other Parties. Notwithstanding anything to the contrary herein, Consultant shall be solely responsible for collecting and paying any and all taxes arising out of this Agreement, including without limitation any sales, use, value added and similar taxes collections, payments and related registrations arising in any way out of or relating to this Agreement. If the Company is required by law to make any deduction or withholding, it may do so without further liability to Consultant for such amount *provided that* the Company will cooperate with the Consultant in taking reasonable steps to minimize or reduce such deduction or withholding to the extent permitted by law. If a certificate of exemption or similar document or proceeding is to be made in order to exempt the Consultant or the transaction from value-added, sales or use tax liability, Consultant will obtain and provide the Company with such certificate, document or proceeding. In that case, the Company shall take reasonable steps to assist the Consultant in this regard, including compliance with the procedures for claiming relief under

applicable provisions of applicable tax treaties. Notwithstanding the foregoing, the Company shall make such deduction or withholding as required in accordance with applicable law and the total of any amount so deducted or withheld and the remainder remitted to Consultant will be deemed to be payment in full.

4.5. Payments. All payments in cash, if any, pursuant to this Agreement shall be made in U.S. Dollars and all payment due to the Consultant will be made by the Company by check drawn on a U.S. bank, electronically to a bank account provided by Consultant, or as otherwise agreed by the Parties in the applicable SOW.

5. Restrictive Covenants.

5.1. Non-Competition. Consultant agrees that, during the Term and for a period equal to twelve (12) months following the Date of Termination or the maximum period permitted under applicable law, whichever is shorter (***“Restricted Period”***), Consultant shall not, directly or indirectly: (i) in any manner whatsoever engage in or assist with the design, development, or distribution of any software or other products having substantially same functionality as the products or services of the Company; or (ii) have any interest as owner, sole proprietor, shareholder, partner, lender, director, officer, manager, employee, or agent of any competing business; *provided, however*, that the Consultant may hold, directly or indirectly, solely as an investment, not more than two percent of the outstanding securities of any entity that is listed on any national securities exchange or regularly traded in the over-the-counter market

5.2. Non-Circumvention. Consultant agrees that, during the Restricted Period, Consultant shall not, without the prior written consent of the Company, either directly or indirectly, whether or not for compensation, call on, solicit, or otherwise circumvent the Company’s relationships with, or adversely impact Company’s relationships with any person and/or entity who is a customer, supplier, or vendor of the Company, or who is or was a prospective customer or client of the Company. Consultant will not take or omit to take any action that would impair, in any manner, Company’s rights hereunder.

5.3. Non-Solicitation of Customers. Consultant agrees that, during the Restricted Period, Consultant shall refrain from soliciting, encouraging, or inducing to solicit, encourage, or inducing directly or by assisting others to solicit: (a) any business from any Customer (as such term defined below), including Customers actively sought by the Consultant in the scope of the Consultants Services provided to the Company, for purposes of providing products or services that are directly competitive with the products and services provided by the Company; or (b) Customers to terminate or reduce any of their business relationship with the Company. For purposes of this Agreement, the term ***“Customer”*** shall mean any and all persons, partnerships, associations, firms, or other entities that: (a) have purchased any of the Company’s products or services; and (b) (i) with whom Consultant dealt directly as part of the Services provided for the Company; (ii) whose dealings with the Company were coordinated or supervised by Consultant; or (iii) about whom Consultant obtained Confidential Information (as that term is defined in Exhibit B attached hereto) in the ordinary course of business as a result of Consultant’s Services provided to the Company.

5.4. Non-Solicitation of Other Employees or Consultants. Consultant agrees that, during the Restricted Period, Consultant shall not, without prior written consent of the Company directly or indirectly, solicit or recruit any employee or independent contractor of the Company

for the purpose of being employed by Consultant, directly or indirectly, or any other person or entity on behalf of which Consultant is acting as an agent, representative, or employee.

5.5. Duty of Loyalty. *Notwithstanding anything to the contrary herein, Consultant hereby confirms that Consultant has no ongoing commitments or obligations nor does he/she/it have any conflicts of interest while providing Services to the Company hereunder. Consultant hereby confirms that he/she/it has fully disclosed all previous and ongoing employments and engagements with any entities whether or not competitive with the Company. Consultant also confirms that any and all information provided in his/her/its Curriculum Vitae provided to the Company is hereby accurate, complete, and not misleading.*

initials: Rezin V

5.6. Non-disparagement. *Consultant agrees that he/she/it will not, directly or indirectly, individually or in concert with others, engage in any conduct or make any statement that is likely to have the effect of undermining or disparaging the reputation of the Company or its goodwill, products, or business opportunities or that is likely to have the effect of undermining or disparaging the reputation of any officer, director, agent, representative, or employee, past or present, of the Company.*

initials: Rezin V

5.7. Consideration. The Consultant acknowledges and agrees that by entering into this Agreement with the Company and engaging in the business relationship contemplated hereby, the Company will expose the Consultant to certain valuable information relating to a highly competitive industry. The Consultant also acknowledges and agrees that, even though some of this know-how and information may not be considered Company's Confidential Information or Company's Intellectual Property, the Company would not provide the Consultant with this know-how or information without Consultant's agreement to be bound by the covenants of this Section 5. The Consultant also acknowledges and agrees that the covenants set forth in this Section 5 are a material part of the consideration bargained for by the Company and, without the agreement of the Consultant to be bound by such covenants, the Company would not have agreed to enter into this Agreement.

6. Confidential Information. *Consultant agrees to hold in strict confidence and not to disclose the Company's Confidential Information (as that term is defined in Exhibit B hereto) as well as other terms and conditions, in accordance with Exhibit B.*

initials: Rezin V

7. Intellectual Property. *Consultant agrees to and shall be bound by terms and conditions related to creation, development, use, and ownership of Intellectual Property (as that term is defined in Exhibit C hereto) relevant to this Agreement, as set forth in Exhibit C.*

initials: Rezin V

8. Company Devices; Monitoring.

8.1. Company Device. Company may require Consultant to use Company provided devices, devices provided by Company clients, or require Consultant to purchase a new device (each a "**Company Device**"). Company shall reimburse Consultant for any Company Device bought by Consultant hereunder. Such requirements may be communicated in writing or set forth in an applicable SOW.

8.2. Protection Measures. Consultant shall install on the Company Device any protection measures (e.g., anti-virus, vpn, etc.) required by the Company ("**Protection Measures**") and communicated to Consultant from time to time. Notwithstanding anything to the contrary herein, Consultant shall be responsible for independently implementing industry standard protection measures on any Company Device, which do not contradict the Protection Measures communicated by the Company.

8.3. Return of Devices. Consultant shall return any Company Device to the Company promptly upon request, at Company's expense.

8.4. Remote Monitoring. Consultant consents to Company monitoring and recording any use of Company Devices, personal devices, and electronic communications systems used in conjunction with the Services, for the purpose of ensuring that Company rules are being complied with and for legitimate business purposes. The Consultant shall comply with any electronic communication systems policies that Company may issue from time to time.

8.5. Open Monitoring. All monitoring or observation of the work performance of Consultant shall be conducted openly. Consultant shall be notified if an area and/or equipment is to be monitored by the Company.

9. Limitations on Liability. EXCEPT FOR INSTANCES WHERE A LIMITATION OF LIABILITY IS PROHIBITED BY APPLICABLE LAW, AND OTHERWISE NOTWITHSTANDING ANYTHING IN THIS AGREEMENT TO THE CONTRARY, THE COMPANY OR ITS AFFILIATES, NOR ITS DIRECTORS, MEMBERS, OFFICERS, MANAGERS, EMPLOYEES, AGENTS, OR REPRESENTATIVES, WILL BE LIABLE TO ANY OTHER PARTY, FOR CLAIMS OF PUNITIVE, SPECIAL, EXEMPLARY, TREBLE, INCIDENTAL, INDIRECT, OR CONSEQUENTIAL DAMAGES, INCLUDING DAMAGES FOR LOSS OF PROFITS, LOSS OF USE OR REVENUE, OR LOSSES BY REASON OF COST OF CAPITAL, CONNECTED WITH OR RESULTING FROM ANY PERFORMANCE OR LACK OF PERFORMANCE UNDER THIS AGREEMENT, REGARDLESS OF WHETHER A CLAIM IS BASED ON CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, VIOLATION OF ANY APPLICABLE DECEPTIVE TRADE PRACTICES ACT OR ANY OTHER LEGAL OR EQUITABLE PRINCIPLE.

10. Miscellaneous Provisions.

10.1. Survival. The provisions of Sections 3.3, 5, 6, 7, 8, 9, and 10 hereof shall survive the termination or expiration of this Agreement.

10.2. Injunctive Relief. Each Party agrees that a breach of any of the promises or agreements contained herein will result in irreparable and continuing damage to a Party for which there will be no adequate remedy at law, and such Party shall be entitled to injunctive relief and/or a decree for specific performance, and such other relief as may be proper (including monetary damages if appropriate).

10.3. Independent Contractor. Both the Company and the Consultant agree that the relationship of the Company and the Consultant established by this Agreement is that of independent contractors and, except as otherwise specifically provided herein, nothing contained in this Agreement shall be construed to (i) give either Party the power to direct and control the day-to-day activities of the other, (ii) constitute the Parties as partners, joint venturers,

franchisor-franchisee, co-owners or otherwise as participants in a joint or common undertaking, or (iii) allow Consultant to create or assume any obligation on behalf of the Company for any purpose whatsoever.

10.4. No Prior Agreements. Each Party, as to himself/herself/itself, represents and warrants to the other that his/her/its execution of this Agreement, this engagement, and the performance of these duties hereunder do not and will not violate or be a breach of any agreement with any other person and/or entity.

10.5. Assignment; Binding Effect. Neither Party may assign or transfer this Agreement without the prior written consent of the other Party, *provided, however*, that the Company shall have the right to assign this Agreement to its affiliates without the Consultant's prior consent by giving notice to the Consultant hereto. Subject to the preceding sentence, this Agreement shall be binding upon, inure to the benefit of, and be enforceable by the Parties hereto and their respective heirs, legal representatives, successors, and assigns.

10.6. Complete Agreement; Waiver. This Agreement is intended to fully reflect the terms of the original agreement of engagement of the Consultant's Services. No provision of the Agreement will be considered waived unless such waiver is in writing and signed by the Party that benefits from the enforcement of such provision. No waiver of any provision in the Agreement, however, will be deemed a waiver of a subsequent breach of such provision or a waiver of a similar provision. In addition, a waiver of any breach or a failure to enforce any term or condition of the Agreement will not in any way affect, limit, or waive a Party's rights under the Agreement at any time to enforce strict compliance thereafter with every term and condition of the Agreement.

10.7. Notices. All claims, instructions, consents, designations, notices, waivers, and other communications in connection with this Agreement ("**Notifications**") will be in writing. Such Notifications will be deemed properly given (a) when received if delivered personally; (b) if delivered by facsimile transmission when the appropriate telecopy confirmation is received; (c) upon the receipt of the electronic transmission by the server of the recipient when transmitted by electronic mail; (d) if sent within the USA, on the next business day after timely deposit with a nationally recognized overnight delivery service; or (e) if sent internationally, within five (5) days after deposit with an internationally recognized express delivery service, in each case when transmitted to a party at the following address or location:

If to the Company:

To the address indicated on the execution page

If to Consultant:

To the address indicated on the execution page

Each Party may change the address to which notices, requests, demands, claims, and other communications hereunder are to be delivered by giving the other notice in the manner herein set forth.

10.8. Severability. If any one or more of the provisions of this Agreement is ruled to be wholly or partly invalid or unenforceable by a court or other government body of competent jurisdiction then: (a) the validity and enforceability of all provisions of this Agreement not ruled to be invalid or unenforceable shall be unaffected; (b) the effect of the ruling shall be limited to

the jurisdiction of the court or other government body making the ruling; (c) the provision(s) held wholly or partly invalid or unenforceable shall be deemed amended, and the court or other government body is authorized to amend and to reform the provision(s) to the minimum extent necessary to render it valid and enforceable in conformity with the Parties' intent as manifested in this Agreement and a provision having a similar economic effect shall be substituted; and (d) if the ruling and/or the controlling principle of law or equity leading to the ruling is subsequently overruled, modified, or amended by legislative, judicial, or administrative action, then the provision(s) in question as originally set forth in the Agreement shall be deemed valid and enforceable to the maximum extent permitted by the new controlling principal of law or equity.

10.9. Headings. The section headings herein are for reference purposes only and are not intended in any way to describe, interpret, define, or limit the extent or intent of this Agreement or of any part hereof.

10.10. Publicity. The Parties shall work together to issue publicity and general marketing communications concerning their relationship and other mutually agreed-upon matters. In addition, none of the Parties shall issue such publicity and general marketing communications concerning their relationship without the prior written consent of the other Party.

10.11. Governing Law. This Agreement shall be governed by the laws of the State of Texas without reference to conflicts of law rules or principles.

10.12. Arbitration. In the event of a dispute between the Parties arising out of or in connection with this Agreement, the Parties hereto shall use their best efforts to resolve the dispute in an amicable manner. If an amicable settlement cannot be reached, such dispute shall be resolved by arbitration, upon either Party's written request, by one (1) arbitrator administered by the American Arbitration Association ("**AAA**") pursuant to the then current Commercial Arbitration Rules of the American Arbitration Association ("**AAA Rules**").

(a). In the event of any conflict between AAA Rules and the provisions of this Agreement, the provisions of this Agreement shall prevail.

(b). The place of the arbitration shall be Austin, Texas.

(c). English language shall be used as the written and spoken language for all matters connected with all references to arbitration.

(d). The decision of the arbitrator shall be made in writing.

(e). The decision of the arbitrator shall be final and binding on the Parties, save in the event of fraud, manifest mistake or failure by the arbitrator to disclose any conflict of interest.

(f). The decision of the arbitrator may be enforced by any court of competent jurisdiction and may be executed against the person and assets of the losing party in any jurisdiction. For the avoidance of doubt, such court includes any court that is authorized to make such an order by virtue of any treaty or legislation relating to the reciprocal enforcement of foreign arbitral awards or judgments.

(g). Nothing in this Section 10.12 shall prevent a Party from seeking or obtaining equitable relief from a court of competent jurisdiction, whether before, during or after arbitration proceedings. For purposes of this Section 10.12(g), the Parties further

agree to submit to the personal jurisdiction of any court in the State of Texas and any other court of competent jurisdiction, and Parties agree to accept service of process in connection with any such suit by means indicated in Section 10.7 hereof.

10.13. Legal Expenses. The substantially prevailing Party in any legal action, including arbitration, brought by one Party against the other and arising out of this Agreement shall be entitled, along with any other rights and remedies it may have, to reimbursement for its expenses, including court costs, arbitration costs, and reasonable attorney's fees. Such fees may be set by the court in the trial of such action or may be enforced in a separate action brought for that purpose. Such fees shall be in addition to any other relief that may be awarded.

10.14. Signatures. This Agreement and any written notice, consent, agreement, or document provided for in this Agreement shall be deemed signed and/or bearing the original signature of a given person, if such person's name and/or adopted signature is placed by such person on the document whether by manual signature, electronic signature (i.e. DocuSign, SignNow), electronic transmission or facsimile transmission by the person. Delivery of a copy of this Agreement or such other document bearing such signature by facsimile transmission or a scanned image of the original signature, by electronic mail in "portable document format" ("*.pdf*") form, or by any other reasonably acceptable electronic means intended to preserve the original graphic, electronic and/or pictorial appearance of a document, will have the same effect as physical delivery of the paper document bearing the original signature.

10.15. Counterparts. This Agreement and any documents pursuant hereto may be separately executed by the Parties in two (2) or more counterparts and all such counterparts shall be deemed an original, but all of which together shall constitute one and the same instrument and will be binding on the Parties as if they had originally signed one copy of the Agreement.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of March 12, 2026.

CONSULTANT	Vladimir Rezin  _____ Name: Vladimir Rezin Title: Individual <i>Address for Notifications:</i> Kyrgyzstan, per. Klubnyy, Dom 18, apt. 18, Bishkek, Chuy Region, 720000 Email: v.rezin@gmail.com Phone number: +79139282900
COMPANY	SameThinkers Inc. By:  _____ Name: Yuliya Malinina Title: CEO State/Country of Incorporation: Texas (USA) <i>Address for Notifications:</i> 543 Kirkham Ln, League City, TX 77573-6537, USA Email: legal@samethinkers.com

EXHIBIT A

STATEMENT OF WORK

This is Statement of Work ("**SOW**") No.1 under the Consulting Agreement, dated as of _____, 202_ ("**Agreement**") by and between SameThinkers Inc., a Texas corporation (the "**Company**") and _____, [an individual resident of _____] {{OR}} [a _____ [insert place of incorporation and type of entity] ("**Consultant**")].

1. Description and/or specifications of the Services to be performed and the Deliverables to be delivered to the Company.

As a part of the Services provided hereunder Consultant agrees to perform the required tasks, including, but not limited to, the tasks set forth below (if and as applicable), or as assigned by Company to Consultant in the Project Tool or in any other written form. Any tasks assigned in the Project Tool or in any other written form, shall be deemed accepted by the Consultant unless the Consultant objects to such task in writing within twenty-four (24) hours of assignment. For purposes hereof, the term "**Deliverables**" shall mean any and all tangible products requested from the Consultant in the performance of his Services.

2. The amount, schedule, and method of payment.

Standard Hours: __ hours/week unless otherwise agreed to by the Parties.

Salary: \$ __/month {{OR}} hour

Company agrees to pay Consultant for the Services performed within the previous month within fifteen (15) days following the receipt of the Deliverables from Consultant. If the Company requests an invoice for any Services related to the Deliverables performed by the Consultant, the Consultant shall provide such invoice within five (5) days of such request. If any payment is issued to Consultant for work done pursuant to any Deliverable that is later rejected by the Company, Consultant shall (i) rectify any defects and non-performance ("**Cure**") as soon as practicable, but in no event later than ten (10) days after such notice of rejection ("**Cure Period**"); or (ii) in case of failure to Cure during the Cure Period, return such paid amount to the Company within fifteen (15) days after the end of the Cure Period. The Company, in its sole discretion, shall have the right to deduct the amount commensurate to the failed Cure.

<i>Seen and agreed:</i> Name: _____ Title: _____	<i>Seen and agreed:</i> THE COMPANY By: _____ Name: Yuliya Malinina Title: CEO
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EXHIBIT B

CONFIDENTIALITY

Consultant hereby agrees to the following conditions with regard to the Company's Confidential Information:

2. Confidential Information. Consultant hereby agrees to hold in strict confidence and not to disclose to any third party, other than employees and agents of the Company or persons retained by the Company to represent its interests, any information, product, document or other material of any nature relating to or concerning the Company, that is provided or made available to Consultant before or after the date of execution of this Agreement, directly or indirectly in any form whatsoever¹, the use or disclosure of which might reasonably be construed to be contrary to the interests of the Company, including information of third parties subject to confidentiality obligations and which the Company may share with Consultant ("**Confidential Information**"), *provided, however,* that the Confidential Information shall not include information that: (i) is already in the possession of Consultant before receipt from the Company; (ii) is or becomes rightfully in the public domain without fault of Consultant; (iii) is received by Consultant from a third party who or which is not under any obligation of confidentiality or restriction on use or disclosure concerning such information; or (iv) is disclosed under operation of law to the public or to a third party without a duty of confidentiality. If Consultant asserts one of the four exceptions to Confidential Information above, then Consultant shall prove such assertion by proper forms of documentary evidence.

3. No Use of Confidential Information. Consultant shall not use any Confidential Information for his/her/its own commercial benefit or for any purpose except carrying out his/her/its obligations hereunder. Consultant shall take all reasonable measures to protect the secrecy of the Confidential Information, to avoid unauthorized disclosures, to prevent the Confidential Information from falling into the public domain and to assure compliance with the provisions of this Agreement by his/her/its employees and affiliates, if and as applicable. Such measures shall require the degree of care that Consultant utilizes to protect his/her/its own Confidential Information of a similar nature, and shall be no less than reasonable care.

4. Ownership of Confidential Information. Consultant further agrees that all of the Confidential Information or any derivatives thereof, is and shall continue to be, the exclusive property of the Company, whether or not prepared in whole or in part by Consultant and

¹ Including in writing, orally, and machine readable, and including, but not be limited to, any correspondence, memoranda, notes, e-mails, formulas, samples, equipment, compilations, blueprints, business information, technical information, know-how, information regarding patents, patent applications, software, computer object code or source code, algorithms, high-level structures, graphic user interfaces, ongoing research and development, business plans, business or marketing strategies or plans, products or product development strategies or plans, information concerning current and future products and services, customers, suppliers and markets, price lists and pricing information, financial statements and forecasts, computerized or other magnetically filed data, methods and techniques, manufacturing processes, developments, inventions, designs, drawings, engineering specifications, hardware configuration information, trade secrets, financial information of the Company and any other business records and information, including without limitation the information about this Agreement.

disclosed to or entrusted to Consultant's custody.

5. Necessary Disclosure of Confidential Information. Consultant shall notify the Company if disclosure of Confidential Information by Consultant is necessary to comply with the requirements of any law, government order, regulation, or legal process prior to such disclosure and at the Company's request use best efforts to seek an appropriate protective order in connection with such legal process and, if unsuccessful, to use best efforts to limit the disclosure or assure that confidential treatment will be accorded to the disclosed Confidential Information.

6. Former Employer Information. Consultant shall not, during the Term, improperly use or disclose any proprietary information or trade secrets of any former or concurrent employer, employee, or other person or entity, and that Consultant will not bring onto the premises of the Company any unpublished document or proprietary information belonging to any such employer, employee, person or entity unless consented to in writing by such employer, employee, person or entity.

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EXHIBIT C

INTELLECTUAL PROPERTY

Consultant agrees to and shall be bound by the following terms and conditions related to creation, development, use, and ownership of intellectual property (***“Intellectual Property”***) relevant to this Agreement:

1. **Works Made for Hire.** Consultant expressly acknowledges and agrees that any and all proprietary materials created by Consultant in the scope of his/her/its engagement with the Company expressed hereunder shall be created as “*works made for hire*” as defined in the United States Copyright Act of 1976 (the ***“Act”***) and other applicable legislation and that the Company shall be the true and lawful owner of all copyrights and other proprietary rights in and to such items and shall be considered to be the sole and exclusive author of such materials within the meaning of the Act. These items shall include, but not be limited to, any and all Deliverables resulting from Consultant’s engagement with the Company or contemplated by this Agreement, all tangible results and proceeds of Consultant’s engagement with the Company, works in progress, records, diagrams, notes, drawings, specifications, schematics, documents, designs, improvements, inventions, discoveries, developments, trademarks, trade secrets, the Company lists, databases, software, programs, middleware, applications, solutions, conceived, made or discovered by Consultant, solely or in collaboration with others, during the period of this Agreement which relate in any manner to the engagement of Consultant with the Company.

2. **Moral Rights.** To the extent allowed by applicable law, the terms of this **Exhibit C** include all rights of paternity, integrity, disclosure, withdrawal and any other rights that may be known as or referred to as moral rights, artist’s rights, droit moral or the like (collectively, ***“Moral Rights”***). To the extent that Consultant retains any such Moral Rights under applicable law, Consultant hereby ratifies and consents to any action that may be taken with respect to such Moral Rights by or authorized by the Company and agrees not to assert any Moral Rights with respect thereto. Consultant shall confirm any such ratification, consent or agreement from time to time as requested by the Company.

Developments. Any and all writings, inventions, improvements, processes, procedures, advances, discoveries, works of authorship, and/or techniques (***“Developments”***) that Consultant may make, conceive, discover, or develop that relate to or are useful in connection with any business now or hereafter carried on or contemplated by the Company or its affiliate, including Developments or expansions of its present fields of operations shall be the Company’s sole and exclusive property, whether or not patentable, copyrightable, or protectable under mask works legislation or trademark laws, either solely or jointly with any other person and/or entity, at any time during the Term, whether or not during working hours and whether or not at the request or upon the suggestion of the Company or any of its affiliates. Consultant hereby assigns to the Company and/or the Company’s nominees all of Consultant’s right, title, and interest in any Developments, and hereby irrevocably designates and appoints the Company and each of the Company’s duly authorized officers and agents as Consultant’s agent and attorney-in-fact to act for and on Consultant’s behalf and stead to execute and file any document and to do all other lawfully permitted acts to further the prosecution, issuance, and enforcement of Developments. Consultant will make full disclosure to the Company of all such Developments and will do everything necessary or desirable to vest the absolute title thereto in the Company. Consultant will write and prepare all specifications and procedures regarding such Developments and

otherwise aid and assist the Company or any of its affiliates so that the Company or such affiliate, as the case may be, can prepare and present applications for copyright, letters patent therefor and can secure such copyright, letters patent, mask works, or trademark registrations, wherever possible, as well as reissues, renewals, and extensions thereof, and can obtain the record title to such copyright, letters patent, mask works, or trademark registrations so that the Company and/or its nominees will be the sole and absolute owner(s) thereof in all countries in which it may desire to have copyright, patent, mask work, or trademark protection. Consultant will not be entitled to any additional or special compensation or reimbursement regarding any and all such Developments. These obligations will continue beyond the termination of engagement for Developments that Consultant conceives of or makes, in full or in part, during the Term.

4. Further Assurances. Consultant agrees to assist the Company, or any party designated by the Company, promptly at the Company's request, whether before or after the termination of engagement in perfecting, registering, maintaining and enforcing, in any jurisdiction, the Company's rights in all works made for hire by performing all acts and executing all documents and instruments deemed necessary or convenient by the Company, including by way of illustration and not limitation:

a) executing assignments, applications and other documents and instruments in connection with (i) obtaining patents, copyrights, trademarks, mask works, database or other proprietary protections for the works made for hire; and (ii) confirming the assignment to the Company of all right, title and interest in the works made for hire or otherwise establishing the Company's exclusive ownership rights therein.

b) cooperating in the prosecution of patent, copyright, trademark and mask work applications, as well as in the enforcement of the Company's rights in the works made for hire, including but not limited to testifying in court or other administrative body, or before any patent, copyright, trademark, mask work or database registry office.

Consultant shall be reimbursed for all out-of-pocket costs incurred in connection with the foregoing in the event such assistance is requested by the Company after the termination of Consultant's engagement with the Company. In addition, to the extent that after the termination of engagement for whatever reason Consultant's technical expertise shall be required in connection with the fulfillment of the aforementioned obligations, the Company shall compensate Consultant at a reasonable rate for the time actually spent by Consultant at the Company's request rendering such assistance.

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SIGNATURE CERTIFICATE



REFERENCE NUMBER

C325BE12-6CE9-4ED5-9B3C-9F0117E0F57C

TRANSACTION DETAILS

Reference Number
C325BE12-6CE9-4ED5-9B3C-9F0117E0F57C

Transaction Type
Signature Request

Sent At
03/16/2026 12:40:28 PM EDT

Executed At
03/17/2026 04:07:06 AM EDT

Identity Method
email

Distribution Method
email

Signed Checksum
075a17e0e349735ec6515be083a2237ba48744422b78d76d22e9ac716cf84f51

Signer Sequencing
Enabled

Document Passcode
Disabled

eIDAS Authentication
Disabled

DOCUMENT DETAILS

Document Name
20260312-01 CSA Rezin Vladimir

Filename
20260312-01_CSA_Rezin_Vladimir_docx.pdf

Pages
16 pages

Content Type
application/pdf

File Size
291 KB

Original Checksum
e356704c3160a9ea535418ef19466762f761e657de3677d25adec836ea22b659

SIGNERS

SIGNER	E-SIGNATURE	EVENTS
Name Rezin Vladimir	Status signed	Viewed At 03/17/2026 03:49:40 AM EDT
Email v.rezin@gmail.com	Multi-factor Digital Fingerprint Checksum 4f53cda18c2baa0c0354bb5f9a3ecbe5ed12ab4d8e11ba873c2f11161202b945	Identity Authenticated At 03/17/2026 04:07:06 AM EDT
Signer Sequence 1	IP Address 152.233.7.34	Signed At 03/17/2026 04:07:06 AM EDT
Components 5	Device Chrome via Windows	
	Drawn Signature 	
	Signature Reference ID 435732ED	
	Signature Biometric Count 1	
Name Yuliya Malinina	Status signed	Viewed At 03/17/2026 03:23:58 AM EDT
Email jmalinina@samethinkers.com	Multi-factor Digital Fingerprint Checksum 4f53cda18c2baa0c0354bb5f9a3ecbe5ed12ab4d8e11ba873c2f11161202b945	Identity Authenticated At 03/17/2026 03:24:51 AM EDT
Signer Sequence 0	IP Address 150.228.47.169	Signed At 03/17/2026 03:24:51 AM EDT
Components 1	Device Chrome via Mac	
	Uploaded Signature 	
	Signature Reference ID BA3F665E	

AUDITS

TIMESTAMP	AUDIT
03/16/2026 12:40:28 PM EDT	Contract Manager (contractors@samethinkers.com) created document '20260312-01_CSA_Rezin_Vladimir_docx.pdf' on Safari via Mac from 46.122.65.169.
03/16/2026 12:40:28 PM EDT	Yuliya Malinina (jmalinina@samethinkers.com) was emailed a link to sign.
03/17/2026 03:23:58 AM EDT	Yuliya Malinina (jmalinina@samethinkers.com) viewed the document on Chrome via Mac from 150.228.47.169.

TIMESTAMP	AUDIT
03/17/2026 03:24:51 AM EDT	Yuliya Malinina (jmalinina@samethinkers.com) authenticated via email on Chrome via Mac from 150.228.47.169.
03/17/2026 03:24:51 AM EDT	Yuliya Malinina (jmalinina@samethinkers.com) signed the document on Chrome via Mac from 150.228.47.169.
03/17/2026 03:24:51 AM EDT	Rezin Vladimir (v.rezin@gmail.com) was emailed a link to sign.
03/17/2026 03:49:40 AM EDT	Rezin Vladimir (v.rezin@gmail.com) viewed the document on Chrome via Windows from 152.233.7.34.
03/17/2026 04:07:06 AM EDT	Rezin Vladimir (v.rezin@gmail.com) authenticated via email on Chrome via Windows from 152.233.7.34.
03/17/2026 04:07:06 AM EDT	Rezin Vladimir (v.rezin@gmail.com) signed the document on Chrome via Windows from 152.233.7.34.